

within the outer perimeter of their authority and discretionary." App. to Pet. for Cert. 25a. After examining the nature of the acts alleged in the complaint, the District Court concluded: "Since the individual defendants have shown that their alleged unconstitutional acts were both within the scope of their authority and discretionary, we dismiss the second amended complaint as to them."⁶ *Id.*, at 28a.

The Court of Appeals for the Second Circuit reversed the District Court's judgment of dismissal with respect to the individual defendants. *Economou v. U. S. Department of Agriculture*, 535 F. 2d 688 (1976). The Court of Appeals reasoned that *Barr v. Matteo*, *supra*, did not "represen[t] the last word in this evolving area," 535 F. 2d, at 691, because principles governing the immunity of officials of the Executive Branch had been elucidated in later decisions dealing with constitutional claims against state officials. *E. g.*, *Pierson v. Ray*, 386 U. S. 547 (1967); *Scheuer v. Rhodes*, 416 U. S. 232 (1974); *Wood v. Strickland*, 420 U. S. 308 (1975). These opinions were understood to establish that officials of the Executive Branch exercising discretionary functions did not need the protection of an absolute immunity from suit, but only a qualified immunity based on good faith and reasonable grounds. The Court of Appeals rejected a proposed distinction between suits against state officials sued pursuant to 42 U. S. C. § 1983 and suits against federal officials under the Constitution, noting that "[o]ther circuits have also concluded that the Supreme Court's development of official immunity doctrine in § 1983 suits against state officials applies with equal force to federal officers sued on a cause of action derived directly from the Constitution, since both types of suits serve the same function of protecting citizens against violations of their constitutional rights by government officials." 535 F. 2d, at 695 n. 7. The Court of Appeals recog-

⁶ The District Court held that the complaint was barred as to the Government agency defendants by the doctrine of sovereign immunity.